CHAPTER TWENTY-THREE

INVASION OF PRIVACY

The Right to Privacy

In India, the laws relating to the right to privacy are not as sacrosanct as in many other countries. Though the Right to Privacy has been interpreted as a Fundamental Right falling under Article 21 of the Constitution, there have been allegations that the government has violated it in the name of 'internal security' and 'public interest'. For instance, in the case of *Manohar vs Union of India* (2021), the Supreme Court 'ordered the creation of an independent committee to investigate' the allegation of certain petitioners, a 'group of Indian citizens, including journalists, lawyers and human rights activists', that they were 'directly affected by Pegasus spyware'. When the government refused to provide 'information under the blanket defence of "national security", the Court found that it had failed to provide sufficient information to justify its position' and ordered the creation of a committee 'to investigate the allegations'.

Often, information that authorities may have collected in the course of an investigation and which they are mandated to use only for prosecuting the guilty has also found its way to the press, violating the citizens' right to privacy.

From monitoring online activity to tapping phones, unsuspecting individuals have at times been snared in these investigations. Ratan, too, became embroiled in such a situation in the first decade of the twenty-first century.

The controversy had its genesis in the tapping of telephone conversations by the Income Tax Department over a period of 180 days in 2008–09. The department recorded about 5,800 calls between Niira Radia, who was the head of a couple of corporate consulting firms, and some prominent